

*File No.: EXP202212653

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for the Protection of Data and based on the following

BACKGROUND

FIRST: D.D.D. (hereinafter, the complainant) filed a complaint with the Spanish Agency for the Protection of Data on December 12, 2022. The complaint is directed against VIGILANCIA MEDIAMBIENTAL, with NIF B55545297 (hereinafter, the respondent), regarding the installation of a video surveillance system located at ***ADDRESS.1, with indications of a possible violation of the provisions of Article 5.1.c) of the GDPR and Article 13 of the GDPR.

The reasons supporting the complaint are as follows:

The complainant states that the respondent is responsible for two video surveillance cameras installed on the façade of a building that, due to their location and orientation, are likely to capture images of the public road, without any administrative authorization for this and without being properly signposted with the required informative signs of the monitored area.

The documents submitted are:

- Photographic report

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

The transfer and request for information was notified to the respondent on November 26, 2022, by postal means, in accordance with the provisions of Articles 41 and 42 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, as evidenced by the delivery proof in the file.

The respondent did not respond to the transfer and request for information notified.

On January 30, 2023, the request for information was reiterated. On February 21, 2023, a response was received indicating:

“...That the company placed signs warning of the existence of cameras since their installation (we attach photographs).

The cameras, which are 4, do not record or allow the viewing of neighboring properties that are not ours, nor the interior of homes or any private or reserved space; in the public road, only a minimal portion necessary to protect the doors of the company against theft and ram-raiding with a vehicle is filmed (we attach photographs of the cameras and monitor).

The system records images according to the Private Security Law for 1 year, in case the security forces request images, which has already happened. The police often consult the cameras in their investigations against theft.

The cameras are not fictitious and protect high-security weapons and materials.

The monitors where the cameras are displayed are protected by alarms and a reinforced door. These facilities are inspected by the Civil Guard once a year. Access is highly restricted; only the Head of Security has access...”

THIRD: On March 12, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FOURTH: On June 14, 2023, the Director of the Spanish Agency for the Protection of Data decided to initiate sanctioning proceedings against the respondent for the alleged infringement of Article 5.1.c) of the GDPR, Article 5.1.e) of the GDPR, and Article 13 of the GDPR, classified under Article 83.5 of the GDPR.

FIFTH: On June 23, 2023, a proposal for resolution was formulated, proposing:

That the Director of the Spanish Agency for the Protection of Data impose a sanction on VIGILANCIA MEDIAMBIENTAL L'ESCURCO, S.L., with NIF B55545297,

- for an infringement of Article 5.1.c) of the GDPR classified under Article 83.5 of the GDPR, with a fine of 500 euros (FIVE HUNDRED EUROS).
- for an infringement of Article 5.1.e) of the GDPR classified under Article 83.5 of the GDPR, with a fine of 500 euros (FIVE HUNDRED EUROS).
- for an infringement of Article 13.c) of the GDPR classified under Article 83.5 of the GDPR, with a fine of 500 euros (FIVE HUNDRED EUROS).

That the Director of the Spanish Agency for the Protection of Data order VIGILANCIA MEDIAMBIENTAL L'ESCURCO, S.L., with NIF B55545297, to comply with Article 58.2.d) of the GDPR, within 30 days, by proving to have complied with:

- The placement of the informative device in the monitored areas or to complete the information provided therein (it must identify, at least, the existence of a processing, the identity of the controller, and the possibility of exercising the rights provided in those provisions), placing this device in a sufficiently visible location, both in open and closed spaces.
- The removal of the camera or video camera system from the current location or its reorientation, in such a way that the viewing of the images observed evidences that no capturing occurs.

C/ Jorge Juan, 6

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28001 – Madrid

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3/14

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the public road.

SIXTH: Once the proposal for resolution has been notified, the respondent submits a new document in which it states:

“Following the request in the sanctioning file EXP 202212653, page 13/15, granting a period of 30 days to make modifications,

WE INFORM

- We have placed new signs and removed the old ones, informative devices, in accordance with current legislation, in a visible manner and identifying the identity of the responsible party so that citizens can exercise their rights, as indicated (we attach photographs).
- We have reoriented the cameras, requested the specialized security company SEGURINCAT to address their requests, taking the appropriate actions, and providing the company with a certificate of compliance with the regulations required by you, which we attach.

WE REQUEST

The filing of the sanction proposal.”

In view of all that has been acted upon, the Spanish Agency for Data Protection considers the following facts to be proven in the present procedure,

PROVEN FACTS

FIRST: It is recorded, according to the documentation in the file, that the respondent is responsible for a system of video surveillance cameras that, due to their location and orientation, are capable of capturing images of the public road.

SECOND: It is recorded, according to the documentation in the file, that the sign indicating that the area is under video surveillance does not meet all the requirements established for this purpose by Article 22 of the LOPDGD, as the information provided is incomplete and insufficient, since it does not indicate the possibility of exercising the rights provided for in Articles 15 to 22 of Regulation (EU) 2016/679.

THIRD: It is recorded, according to the statement of the respondent itself, that the images recorded by the cameras are retained for a period of one year.

LEGAL GROUNDS

I

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and

the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

In response to the allegations presented by the respondent, the following should be noted:

- The respondent claims that this file is not appropriate, as the AEPD has already initiated EXP202300588 in which all documentation was attached, concluding the file without sanction and correctly.

In this regard, this Agency indicates that the aforementioned file corresponds to Actions AT/00236/2023, initiated based on the complaint received and of which the respondent was informed. Since it was not demonstrated in the response to that notification that the processing carried out by the video surveillance system was in accordance with the current regulations on data protection, those AT/00236/2023 are what have led to the opening of the present sanctioning file.

Thus, it cannot be considered that the file was concluded without sanction, as claimed by the respondent, since those actions are not, properly speaking, a Sanctioning Procedure.

- The respondent indicates that they have placed new signs and removed the old ones, in accordance with current legislation, in a visible manner and identifying the identity of the responsible party so that citizens can exercise their rights.

They have also reoriented the cameras and request the filing of the sanctioning file.

In this regard, this Agency takes into account that the respondent has already complied with the measures indicated both in the Initiation Agreement and in the Proposal for Resolution. However, the filing of the file cannot proceed since, as has been demonstrated throughout the instruction of the same, the infringements attributed were, indeed, committed, and therefore the proposed sanctions must be maintained.

III

The physical image of a person, according to Article 4.1 of the GDPR, is a personal data and its protection, therefore, is subject to said Regulation. Article 4.2 of the GDPR defines the concept of "processing" of personal data.

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28001 – Madrid

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5/14

“«treatment»: any operation or set of operations performed on personal data or sets of personal data, whether by automated processes or not, such as collection, recording, organization, structuring, storage, adaptation or modification, extraction, consultation, use, communication by transmission, dissemination or any other form of enabling access, comparison or interconnection, restriction, deletion or destruction;”

The images generated by a system of cameras or video cameras are personal data, so their processing is subject to data protection regulations.

It is, therefore, pertinent to analyze whether the processing of personal data (images of individuals) carried out through the reported video surveillance system complies with the provisions established in the GDPR.

Article 22 of the LOPDGDD establishes that natural or legal persons, public or private, may carry out the processing of images through camera or video camera systems for the purpose of preserving the safety of individuals and property, as well as their facilities.

The processing of personal data is subject to the principles of processing contained in Article 5 of the GDPR. We will highlight the principle of data minimization contained in Article 5.1.c) of the GDPR, which stipulates that personal data shall be “adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed.”

This means that in a specific processing operation, only the relevant personal data that is strictly necessary to fulfill the purpose for which it is processed may be processed. The processing must be appropriate and proportional to the purpose it is directed towards. Relevance in the processing of data must occur both at the time of data collection and in the subsequent processing of the same. In accordance with the above, the processing of excessive data must be restricted or the data must be deleted.

The application of the principle of data minimization in the context of video surveillance implies that images of public roads cannot be captured, since the processing of images in public places can only be carried out by the Security Forces and Bodies with prior governmental authorization.

On some occasions, for the protection of private spaces, where cameras have been installed on facades or inside, it may be necessary to record a portion of the public road to ensure the purpose of security.

That is to say, cameras and video cameras installed for security purposes may not capture images of the public road unless it is essential for that purpose or it is impossible to avoid it due to their location. In such extraordinary cases, the cameras may only capture the minimum portion necessary to preserve the safety of individuals and property, as well as their facilities.

Under no circumstances will the use of surveillance practices beyond the environment subject to the installation be permitted, and in particular, it may not affect surrounding public spaces, adjacent buildings, and vehicles other than those accessing the monitored space.

The installed cameras may not capture images of third-party private spaces and/or public spaces without duly justified cause, nor may they affect the privacy of passersby freely moving through the area.

Therefore, the placement of cameras directed towards the private property of neighbors with the intention of intimidating them or affecting their private sphere without justified cause is not permitted. Images may also not be captured or recorded in spaces owned by third parties without the consent of their owners, or, where applicable, of the individuals present in those spaces.

IV

In accordance with the above, the processing of images through a video surveillance system, to be compliant with current regulations, must meet the following requirements:

1.- Natural or legal persons, public or private, may establish a video surveillance system for the purpose of preserving the safety of individuals and property, as well as their facilities.

It must be assessed whether the intended purpose can be achieved in a less intrusive manner for the rights and freedoms of citizens. Personal data should only be processed if the purpose of the processing cannot reasonably be achieved by other means, considering Recital 39 of the GDPR.

2.- The images obtained may not be used for a subsequent purpose incompatible with the one that motivated the installation of the video surveillance system.

3.- The obligation to inform the affected parties as provided in Articles 12 and 13 of the GDPR, and Article 22 of the LOPDGDD must be fulfilled.

In this regard, Article 22 of the LOPDGDD provides for a “layered information” system concerning video surveillance.

The first layer must refer, at a minimum, to the existence of the processing (video surveillance), the identity of the data controller, the possibility of exercising the rights provided in Articles 15 to 22 of the GDPR, and where to obtain more information about the processing of personal data.

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7/14

This information shall be contained in a device placed in a sufficiently visible location and must be provided in advance.

The information of the second layer must be available in a location easily accessible to the affected party, whether it be an information sheet at a reception, cashier, etc., placed in a visible public space

or on a web address, and must refer to the other elements of Article 13 of the GDPR.

4.- The processing of images through the installation of camera or video camera systems must be lawful and comply with the principles of proportionality and data minimization, as previously indicated.

5.- Images may be retained for a maximum period of one month, except in cases where they must be retained to prove the commission of acts that threaten the integrity of persons, property, or facilities. In this second case, they must be made available to the competent authority within a maximum period of 72 hours from the time knowledge of the existence of the recording was obtained.

6.- The data controller must maintain a record of activities of the processing carried out under their responsibility, which includes the information referred to in Article 30.1 of the GDPR.

7.- The data controller must conduct a risk analysis or, where applicable, a data protection impact assessment, to detect the risks arising from the implementation of the video surveillance system, evaluate them, and, if necessary, adopt appropriate security measures.

8.- When the system is connected to an alarm center, it may only be installed by a private security company that meets the requirements set forth in Article 5 of Law 5/2014 on Private Security, of April 4.

The Spanish Data Protection Agency provides access through its website [<https://www.aepd.es>] to:

- the legislation on personal data protection, including the GDPR and the LOPDGDD (section "Reports and Resolutions" / "Regulations"),

- the Guide on the use of video cameras for security and other purposes,

- the Guide for compliance with the duty to inform (both available in the "Guides and Tools" section).

It is also of interest, in cases of low-risk data processing, the free tool Facilita (in the "Guides and Tools" section), which, through specific questions, allows the data controller to assess their situation regarding the processing of personal data they carry out, and if applicable, generate various documents, informative and contractual clauses, as well as an annex with minimum recommended security measures.

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28001 – Madrid

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8/14

Regarding processing for video surveillance purposes, Article 22 of the LOPDGDD establishes that natural or legal persons, public or private, may carry out the processing of images through camera or video camera systems for the purpose of preserving the security of persons and property, as well as their facilities.

Article 12.1 of the GDPR indicates that anyone who carries out the processing of personal data, such as capturing images through a video surveillance system, must provide the affected parties with the information indicated in Articles 13 and 14 of the GDPR.

In order for the information duty provided in Article 12 of the GDPR to be fulfilled concisely and understandably for the affected party, the aforementioned Article 22 of the LOPDGDD provides for a "layered information" system in relation to video surveillance.

In this regard, the first layer must refer, at a minimum, to the existence of the processing (video surveillance), the identity of the data controller, the possibility of exercising the rights provided in Articles 15 to 22 of the GDPR, and where to obtain more information about the processing of personal data.

The information of the second layer must be available in a location easily accessible to the affected party, whether it be an information sheet at a reception, cashier, etc., placed in a visible public space or on a web address, and must refer to the other elements of Article 13 of the GDPR.

It is not necessary to specify the precise location of the video surveillance equipment.

This information duty will be considered fulfilled by placing an informative device in a sufficiently visible location, and at a minimum, at the entrances to the monitored areas, whether interior or exterior. In cases where the monitored space has multiple entrances, such a sign indicating the video surveillance area must be placed at each of them.

This information must be provided in advance - considering Recital 39 of the GDPR. The aim is to clarify the context of the surveillance.

The processing of personal data is subject to the other principles of processing contained in Article 5 of the GDPR. We will highlight the principle of data minimization contained in Article 5.1.c) of the GDPR, which states that personal data shall be "adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed."

This means that in a specific processing operation, only the relevant personal data that is necessary to fulfill the purpose for which it is processed may be processed. The processing must be appropriate and proportional to the purpose it is directed towards. Relevance in the processing of data must occur both at the time of data collection and in the subsequent processing of the same.

C/ Jorge Juan, 6

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28001 – Madrid

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9/14

According to the above, the processing of excessive data must be restricted or the data must be deleted.

The application of the principle of data minimization in the area of video surveillance implies that images of public roads cannot be captured, since the processing of images in public places can only be carried out by the Security Forces and Corps with prior governmental authorization.

On some occasions, for the protection of private spaces, where cameras have been installed on facades or indoors, it may be necessary to record a portion of the public road to ensure security purposes.

That is to say, cameras and video cameras installed for security purposes may not obtain images of the public road unless it is essential for that purpose, or it is impossible to avoid it due to their location. In such extraordinary cases, the cameras may only capture the minimum portion necessary to preserve the safety of people and property, as well as their facilities.

Under no circumstances will the use of surveillance practices beyond the environment subject to the installation be permitted, and in particular, it must not affect surrounding public spaces, adjacent buildings, and vehicles other than those accessing the monitored space.

The installed cameras may not capture images of third-party private spaces and/or public spaces without a duly justified cause, nor may they affect the privacy of passersby freely transiting the area.

Therefore, the placement of cameras directed towards the private property of neighbors with the aim of intimidating them or affecting their private sphere without justified cause is not permitted.

Images in spaces owned by third parties may not be captured or recorded without the consent of their owners, or, where applicable, of the persons present in those spaces.

Furthermore, it is disproportionate to capture images in private spaces, such as changing rooms, lockers, or rest areas for workers.

V

In the present case, from the documentation in the file, provided by both the claimant and the respondent, it is evident that the respondent has installed cameras that excessively capture the public road where the access door to the company is located.

It is therefore considered that the facts presented violate what is established in Article 5.1.c) of the GDPR, constituting an infringement as defined in Article 83.5 of the GDPR, which states the following: "Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of a company, an amount equivalent to 4% at most of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...)."

For the purposes of the statute of limitations for infringements, the infringement indicated in the previous paragraph is considered very serious in accordance with Article 72.1 of the LOPDGDD, which establishes that:

“Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following are considered very serious and shall prescribe after three years: infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679.

(...).”

VI

Article 5.1.e of the GDPR establishes:

1. Personal data shall be:

e) maintained in a manner that allows the identification of data subjects for no longer than is necessary for the purposes of processing personal data; personal data may be retained for longer periods provided that they are processed solely for archiving purposes in the public interest, scientific or historical research purposes, or statistical purposes, in accordance with Article 89, paragraph 1, without prejudice to the application of the appropriate technical and organizational measures imposed by this Regulation to protect the rights and freedoms of the data subject (“storage limitation”);

The respondent, in its response to the transfer and request for information, states:

“The system records images according to the Private Security Law, for 1 year, in case the State Security Forces request images, which has already happened...”

Article 42 of Law 5/2014, of April 4, on Private Security establishes:

Article 42. Video surveillance services

(...)

2. Cameras or video cameras may not be used for private security purposes to take images and sounds of public roads and spaces or of

C/ Jorge Juan, 6

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28001 – Madrid

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11/14

public access except in the cases and under the terms and conditions provided for in its specific regulations, prior administrative authorization from the competent authority in each case. Its use within private residences will require the consent of the owner.

(...)

4. The recordings made by video surveillance systems may not be used for purposes other than their intended purpose. When they are related to criminal acts or affect public safety, they will be submitted, either voluntarily or upon request, to the competent Security Forces and Bodies, respecting the criteria for preservation and custody of such recordings for their valid submission as evidence in police or judicial investigations.

5. The monitoring, recording, processing, and registration of images and sounds by video surveillance systems will be subject to the provisions of the regulations on the protection of personal data, and especially to the principles of proportionality, suitability, and minimal intervention.

6. In matters not provided for in this law and its implementing regulations, the provisions of the regulations on video surveillance by the Security Forces and Bodies will apply.

*(the underlining corresponds to this Agency)

For its part, the LOPDGDD, in its Article 22 (processing for video surveillance purposes) subsection 3 states:

3. The data will be deleted within a maximum period of one month from its capture, unless it must be retained to prove the commission of acts that threaten the integrity of persons, property, or facilities. In such cases, the images must be made available to the competent authority within a maximum period of seventy-two hours from the time knowledge of the existence of the recording is obtained.

The obligation of blocking provided for in Article 32 of this organic law will not apply to these treatments.

For all these reasons, it is considered that the facts presented violate what is established in Article 5.1.e) of the GDPR, constituting an infringement as defined in Article 83.5 of the GDPR, which states

the following:

“Violations of the following provisions will be sanctioned, in accordance with subsection 2, with administrative fines of up to 20,000,000 EUR or, in the case of a company, an amount equivalent to 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

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12/14

a) the basic principles for processing, including the conditions for consent according to Articles 5, 6, 7, and 9;

(...)”.

For the purposes of the statute of limitations for infringements, the infringement indicated in the previous paragraph is considered very serious in accordance with Article 72.1 of the LOPDGDD, which establishes that:

“Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following are considered very serious and will prescribe after three years: infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

a) The processing of personal data violating the principles and guarantees established in Article 5 of Regulation (EU) 2016/679.

(...)”

VII

The installation of a video camera entails the unavoidable obligation to inform about its presence through an informative device, in a sufficiently visible location, identifying at least the existence of the processing, the identity of the responsible party, and the possibility of exercising the rights provided for in Articles 15 to 22 of the GDPR.

In this case, although a sign indicating that the area is under video surveillance is installed, it is observed that it does not comply with all the requirements established by Article 22 of the LOPDGDD, as the information provided is incomplete and insufficient, since it does not indicate the possibility of exercising the rights provided for in Articles 15 to 22 of Regulation (EU) 2016/679.

It is considered that the facts presented violate what is established in Article 13 of the GDPR, constituting an infringement as defined in Article 83.5 of the GDPR, which states the following:

“Violations of the following provisions will be sanctioned, in accordance with subsection 2, with administrative fines of up to 20,000,000 EUR or, in the case of a company, an amount equivalent to 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

(...)”

b) the rights of data subjects according to Articles 12 to 22; (...)”.

For the purposes of the statute of limitations, Article 74 “Minor Infringements” of the LOPDGDD states:

“Minor infringements will prescribe after one year, being the remaining formal infringements of the articles mentioned in subsections 4 and 5 of Article 83 of Regulation (EU) 2016/679 and, in particular, the following:

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28001 – Madrid

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13/14

a) The failure to comply with the principle of transparency of information or the right to information of the affected party by not providing all the information required by Articles 13 and 14 of Regulation (EU) 2016/679.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on VIGILANCIA MEDIAMBIENTAL L'ESCURCO, S.L., with NIF B55545297:

- for an infringement of Article 5.1.c) of the GDPR classified under Article 83.5 of the GDPR, a fine of 500 euros (FIVE HUNDRED EUROS).
- for an infringement of Article 5.1.E) of the GDPR classified under Article 83.5 of the GDPR, a fine of 500 euros (FIVE HUNDRED EUROS).
- for an infringement of Article 13 of the GDPR classified under Article 83.5 of the GDPR, a fine of 500 euros (FIVE HUNDRED EUROS).

SECOND: NOTIFY this resolution to VIGILANCIA MEDIAMBIENTAL L'ESCURCO, S.L.

THIRD: Warn the sanctioned party that they must pay the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account No.

IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receiving the notification and once it is enforceable, if the date of enforceability falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly

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14/14

file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by writing to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [https://sedeagpd.gob.es/sede-electronica-web/], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, the provisional suspension will be considered terminated.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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